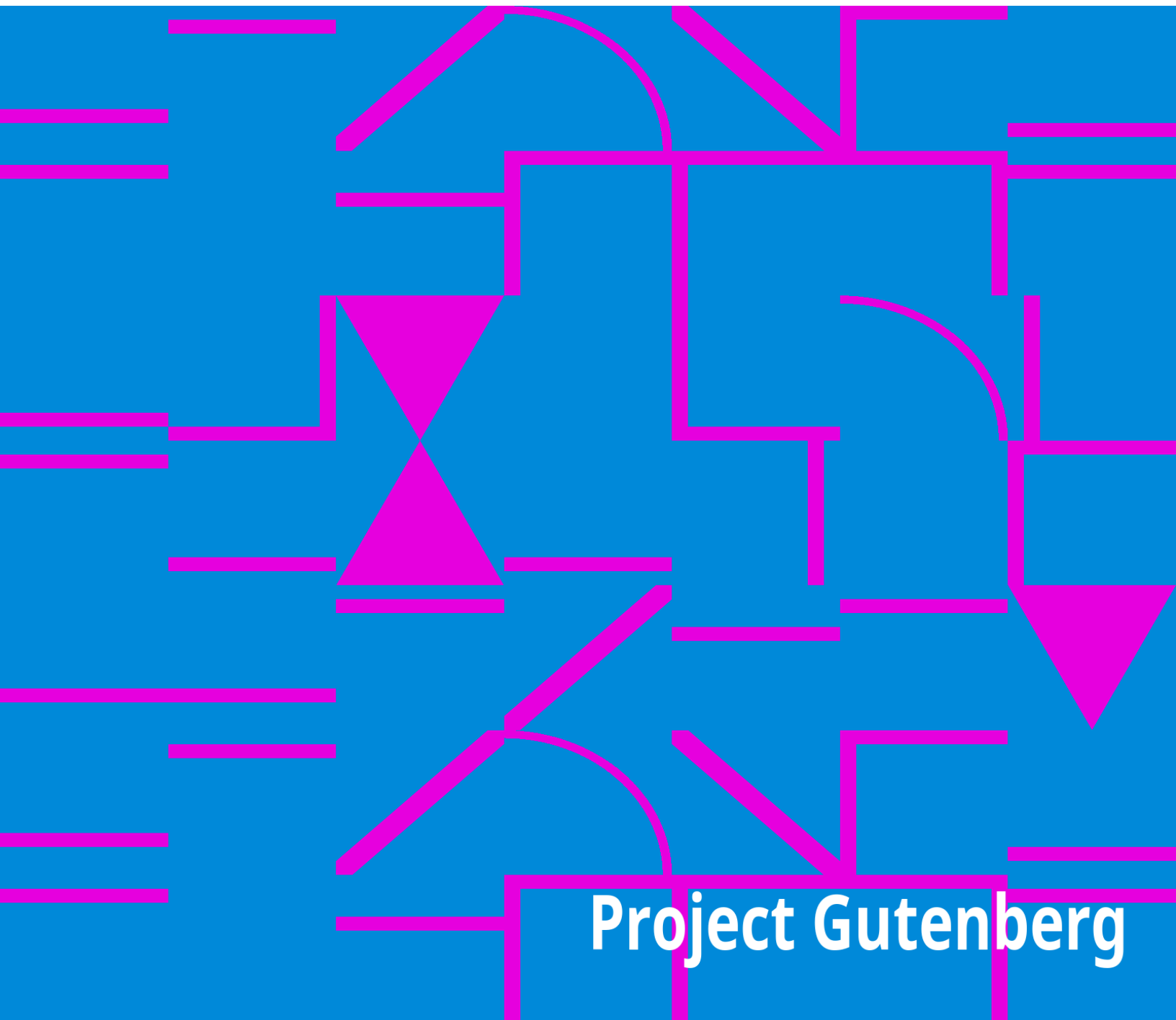


Fenimore Cooper's Literary Offences

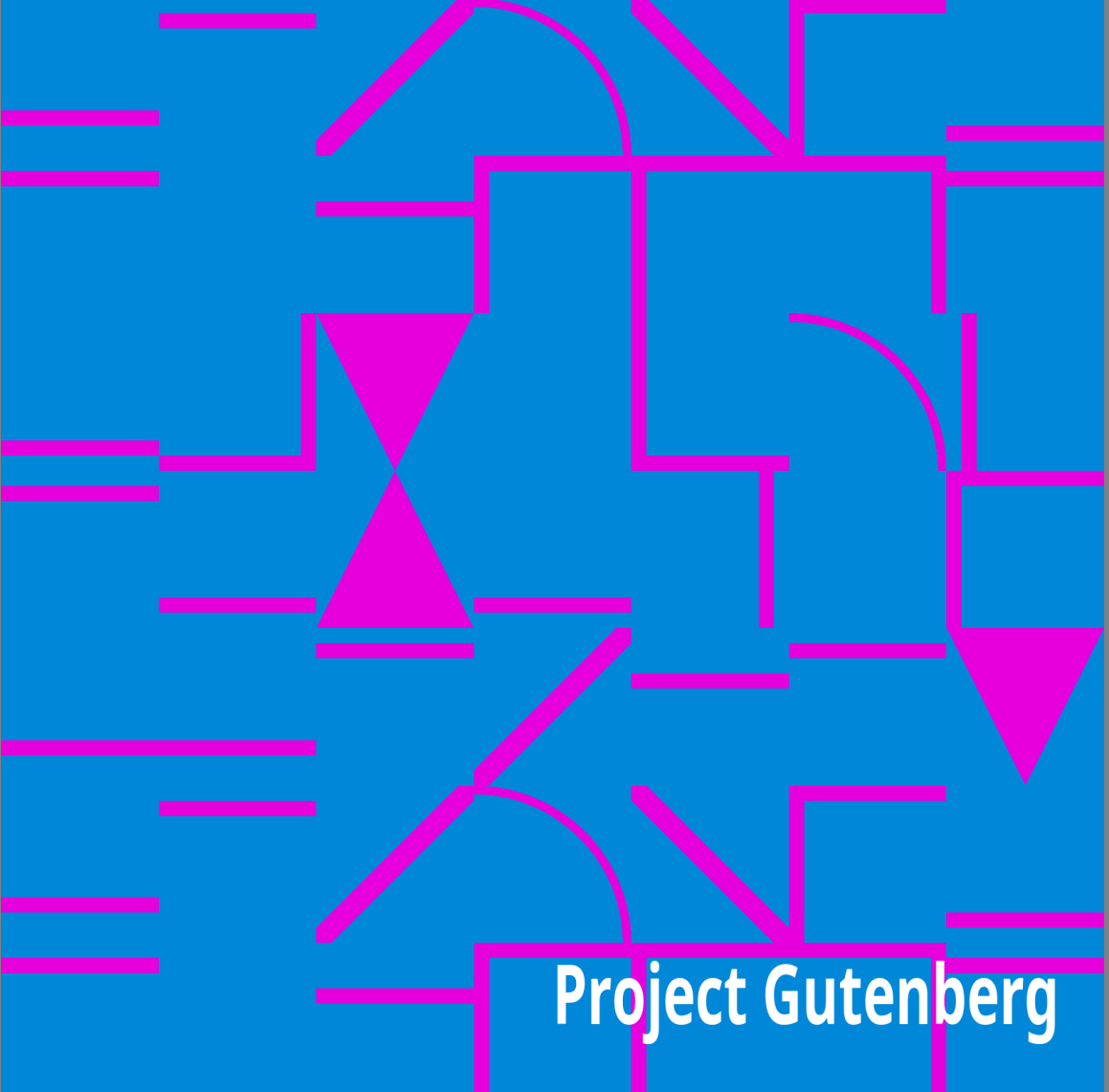
Mark Twain



Project Gutenberg

Fenimore Cooper's Literary Offences

Mark Twain



Project Gutenberg

The Project Gutenberg eBook of Fenimore Cooper's Literary Offences

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Fenimore Cooper's Literary Offences

Author: Mark Twain

Release date: September 16, 2004 [eBook #3172]

Most recently updated: January 27, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/3172

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK FENIMORE
COOPER'S LITERARY OFFENCES ***

FENIMORE COOPER'S LITERARY OFFENCES

by Mark Twain

The Pathfinder and The Deerslayer stand at the head of Cooper's novels as artistic creations. There are others of his works which contain parts as perfect as are to be found in these, and scenes even more thrilling. Not one can be compared with either of them as a finished whole.

The defects in both of these tales are comparatively slight. They were pure works of art.—Prof. Lounsbury.

The five tales reveal an extraordinary fulness of invention. ... One of the very greatest characters in fiction, Natty Bumppo....

The craft of the woodsman, the tricks of the trapper, all the delicate art of the forest, were familiar to Cooper from his youth up.—Prof. Brander Matthews.

Cooper is the greatest artist in the domain of romantic fiction yet produced by America.—Wilkie Collins.

It seems to me that it was far from right for the Professor of English Literature in Yale, the Professor of English Literature in Columbia, and Wilkie Collins to deliver opinions on Cooper's literature without having read some of it. It would have been much more decorous to keep silent and let persons talk who have read Cooper.

Cooper's art has some defects. In one place in 'Deerslayer,' and in the restricted space of two-thirds of a page, Cooper has scored 114 offences against literary art out of a possible 115. It breaks the record.

There are nineteen rules governing literary art in the domain of romantic fiction—some say twenty-two. In *Deerslayer* Cooper violated eighteen of them. These eighteen require:

1. That a tale shall accomplish something and arrive somewhere. But the *Deerslayer* tale accomplishes nothing and arrives in the air.

2. They require that the episodes of a tale shall be necessary parts of the tale, and shall help to develop it. But as the *Deerslayer* tale is not a tale, and accomplishes nothing and arrives nowhere, the episodes have no rightful place in the work, since there was nothing for them to develop.

3. They require that the personages in a tale shall be alive, except in the case of corpses, and that always the reader shall be able to tell the corpses from the others. But this detail has often been overlooked in the *Deerslayer* tale.

4. They require that the personages in a tale, both dead and alive, shall exhibit a sufficient excuse for being there. But this detail also has been overlooked in the *Deerslayer* tale.

5. They require that when the personages of a tale deal in conversation, the talk shall sound like human talk, and be talk such as human beings would be likely to talk in the given circumstances, and have a discoverable meaning, also a discoverable purpose, and a show of relevancy, and remain in the neighborhood of the subject in hand, and be interesting to the reader, and help out the tale, and stop when the people cannot think of anything more to say. But this requirement has been ignored from the beginning of the *Deerslayer* tale to the end of it.

6. They require that when the author describes the character of a personage in his tale, the conduct and conversation of that personage shall justify said description. But this law gets little or no attention in the *Deerslayer* tale, as Natty Bumppo's case will amply prove.

7. They require that when a personage talks like an illustrated, gilt-edged, tree-calf, hand-tooled, seven-dollar *Friendship's Offering* in the beginning of a paragraph, he shall not talk like a negro minstrel in the end of it. But this rule is flung down and danced upon in the *Deerslayer* tale.

8. They require that crass stupidities shall not be played upon the reader as “the craft of the woodsman, the delicate art of the forest,” by either the

author or the people in the tale. But this rule is persistently violated in the Deerslayer tale.

9. They require that the personages of a tale shall confine themselves to possibilities and let miracles alone; or, if they venture a miracle, the author must so plausibly set it forth as to make it look possible and reasonable. But these rules are not respected in the Deerslayer tale.

10. They require that the author shall make the reader feel a deep interest in the personages of his tale and in their fate; and that he shall make the reader love the good people in the tale and hate the bad ones. But the reader of the Deerslayer tale dislikes the good people in it, is indifferent to the others, and wishes they would all get drowned together.

11. They require that the characters in a tale shall be so clearly defined that the reader can tell beforehand what each will do in a given emergency. But in the Deerslayer tale this rule is vacated.

In addition to these large rules there are some little ones. These require that the author shall:

12. Say what he is proposing to say, not merely come near it.

13. Use the right word, not its second cousin.

14. Eschew surplusage.

15. Not omit necessary details.

16. Avoid slovenliness of form.

17. Use good grammar.

18. Employ a simple and straightforward style.

Even these seven are coldly and persistently violated in the Deerslayer tale.

Cooper's gift in the way of invention was not a rich endowment; but such as it was he liked to work it, he was pleased with the effects, and indeed he did some quite sweet things with it. In his little box of stage properties he kept six or eight cunning devices, tricks, artifices for his savages and woodsmen to deceive and circumvent each other with, and he was never so happy as when he was working these innocent things and seeing them go. A favorite one was to make a moccasined person tread in the tracks of the moccasined enemy, and thus hide his own trail. Cooper wore out barrels and barrels of moccasins in working that trick. Another stage-property that

he pulled out of his box pretty frequently was his broken twig. He prized his broken twig above all the rest of his effects, and worked it the hardest. It is a restful chapter in any book of his when somebody doesn't step on a dry twig and alarm all the reds and whites for two hundred yards around. Every time a Cooper person is in peril, and absolute silence is worth four dollars a minute, he is sure to step on a dry twig. There may be a hundred handier things to step on, but that wouldn't satisfy Cooper. Cooper requires him to turn out and find a dry twig; and if he can't do it, go and borrow one. In fact, the Leather Stocking Series ought to have been called the Broken Twig Series.

I am sorry there is not room to put in a few dozen instances of the delicate art of the forest, as practised by Natty Bumppo and some of the other Cooperian experts. Perhaps we may venture two or three samples. Cooper was a sailor—a naval officer; yet he gravely tells us how a vessel, driving towards a lee shore in a gale, is steered for a particular spot by her skipper because he knows of an undertow there which will hold her back against the gale and save her. For just pure woodcraft, or sailorcraft, or whatever it is, isn't that neat? For several years Cooper was daily in the society of artillery, and he ought to have noticed that when a cannon-ball strikes the ground it either buries itself or skips a hundred feet or so; skips again a hundred feet or so—and so on, till finally it gets tired and rolls. Now in one place he loses some “females”—as he always calls women—in the edge of a wood near a plain at night in a fog, on purpose to give Bumppo a chance to show off the delicate art of the forest before the reader. These mislaid people are hunting for a fort. They hear a cannonblast, and a cannon-ball presently comes rolling into the wood and stops at their feet. To the females this suggests nothing. The case is very different with the admirable Bumppo. I wish I may never know peace again if he doesn't strike out promptly and follow the track of that cannon-ball across the plain through the dense fog and find the fort. Isn't it a daisy? If Cooper had any real knowledge of Nature's ways of doing things, he had a most delicate art in concealing the fact. For instance: one of his acute Indian experts, Chingachgook (pronounced Chicago, I think), has lost the trail of a person he is tracking through the forest. Apparently that trail is hopelessly lost. Neither you nor I could ever have guessed out the way to find it. It was very different with Chicago. Chicago was not stumped for long. He turned a running stream out of its course, and there, in the slush in its old bed, were

that person's moccasin-tracks. The current did not wash them away, as it would have done in all other like cases—no, even the eternal laws of Nature have to vacate when Cooper wants to put up a delicate job of woodcraft on the reader.

We must be a little wary when Brander Matthews tells us that Cooper's books “reveal an extraordinary fulness of invention.” As a rule, I am quite willing to accept Brander Matthews's literary judgments and applaud his lucid and graceful phrasing of them; but that particular statement needs to be taken with a few tons of salt. Bless your heart, Cooper hadn't any more invention than a horse; and I don't mean a high-class horse, either; I mean a clothes-horse. It would be very difficult to find a really clever “situation” in Cooper's books, and still more difficult to find one of any kind which he has failed to render absurd by his handling of it. Look at the episodes of “the caves”; and at the celebrated scuffle between Maqua and those others on the table-land a few days later; and at Hurry Harry's queer water-transit from the castle to the ark; and at Deerslayer's half-hour with his first corpse; and at the quarrel between Hurry Harry and Deerslayer later; and at—but choose for yourself; you can't go amiss.

If Cooper had been an observer his inventive faculty would have worked better; not more interestingly, but more rationally, more plausibly. Cooper's proudest creations in the way of “situations” suffer noticeably from the absence of the observer's protecting gift. Cooper's eye was splendidly inaccurate. Cooper seldom saw anything correctly. He saw nearly all things as through a glass eye, darkly. Of course a man who cannot see the commonest little every-day matters accurately is working at a disadvantage when he is constructing a “situation.” In the Deerslayer tale Cooper has a stream which is fifty feet wide where it flows out of a lake; it presently narrows to twenty as it meanders along for no given reason; and yet when a stream acts like that it ought to be required to explain itself. Fourteen pages later the width of the brook's outlet from the lake has suddenly shrunk thirty feet, and become “the narrowest part of the stream.” This shrinkage is not accounted for. The stream has bends in it, a sure indication that it has alluvial banks and cuts them; yet these bends are only thirty and fifty feet long. If Cooper had been a nice and punctilious observer he would have noticed that the bends were oftener nine hundred feet long than short of it.

Cooper made the exit of that stream fifty feet wide, in the first place, for no particular reason; in the second place, he narrowed it to less than twenty to accommodate some Indians. He bends a "sapling" to the form of an arch over this narrow passage, and conceals six Indians in its foliage. They are "laying" for a settler's scow or ark which is coming up the stream on its way to the lake; it is being hauled against the stiff current by a rope whose stationary end is anchored in the lake; its rate of progress cannot be more than a mile an hour. Cooper describes the ark, but pretty obscurely. In the matter of dimensions "it was little more than a modern canal-boat." Let us guess, then, that it was about one hundred and forty feet long. It was of "greater breadth than common." Let us guess, then, that it was about sixteen feet wide. This leviathan had been prowling down bends which were but a third as long as itself, and scraping between banks where it had only two feet of space to spare on each side. We cannot too much admire this miracle. A low-roofed log dwelling occupies "two-thirds of the ark's length"—a dwelling ninety feet long and sixteen feet wide, let us say a kind of vestibule train. The dwelling has two rooms—each forty-five feet long and sixteen feet wide, let us guess. One of them is the bedroom of the Hutter girls, Judith and Hetty; the other is the parlor in the daytime, at night it is papa's bedchamber. The ark is arriving at the stream's exit now, whose width has been reduced to less than twenty feet to accommodate the Indians—say to eighteen. There is a foot to spare on each side of the boat. Did the Indians notice that there was going to be a tight squeeze there? Did they notice that they could make money by climbing down out of that arched sapling and just stepping aboard when the ark scraped by? No, other Indians would have noticed these things, but Cooper's Indians never notice anything. Cooper thinks they are marvelous creatures for noticing, but he was almost always in error about his Indians. There was seldom a sane one among them.

The ark is one hundred and forty feet long; the dwelling is ninety feet long. The idea of the Indians is to drop softly and secretly from the arched sapling to the dwelling as the ark creeps along under it at the rate of a mile an hour, and butcher the family. It will take the ark a minute and a half to pass under. It will take the ninety foot dwelling a minute to pass under. Now, then, what did the six Indians do? It would take you thirty years to guess, and even then you would have to give it up, I believe. Therefore, I will tell you what the Indians did. Their chief, a person of quite

extraordinary intellect for a Cooper Indian, warily watched the canal-boat as it squeezed along under him, and when he had got his calculations fined down to exactly the right shade, as he judged, he let go and dropped. And missed the house! That is actually what he did. He missed the house, and landed in the stern of the scow. It was not much of a fall, yet it knocked him silly. He lay there unconscious. If the house had been ninety-seven feet long he would have made the trip. The fault was Cooper's, not his. The error lay in the construction of the house. Cooper was no architect.

There still remained in the roost five Indians.

The boat has passed under and is now out of their reach. Let me explain what the five did—you would not be able to reason it out for yourself. No. 1 jumped for the boat, but fell in the water astern of it. Then No. 2 jumped for the boat, but fell in the water still farther astern of it. Then No. 3 jumped for the boat, and fell a good way astern of it. Then No. 4 jumped for the boat, and fell in the water away astern. Then even No. 5 made a jump for the boat—for he was a Cooper Indian. In the matter of intellect, the difference between a Cooper Indian and the Indian that stands in front of the cigarshop is not spacious. The scow episode is really a sublime burst of invention; but it does not thrill, because the inaccuracy of the details throws a sort of air of fictitiousness and general improbability over it. This comes of Cooper's inadequacy as an observer.

The reader will find some examples of Cooper's high talent for inaccurate observation in the account of the shooting-match in *The Pathfinder*.

"A common wrought nail was driven lightly into the target, its head having been first touched with paint."

The color of the paint is not stated—an important omission, but Cooper deals freely in important omissions. No, after all, it was not an important omission; for this nail-head is a hundred yards from the marksmen, and could not be seen by them at that distance, no matter what its color might be.

How far can the best eyes see a common house-fly? A hundred yards? It is quite impossible. Very well; eyes that cannot see a house-fly that is a hundred yards away cannot see an ordinary nailhead at that distance, for the size of the two objects is the same. It takes a keen eye to see a fly or a nailhead at fifty yards—one hundred and fifty feet. Can the reader do it?

The nail was lightly driven, its head painted, and game called. Then the Cooper miracles began. The bullet of the first marksman chipped an edge off the nail-head; the next man's bullet drove the nail a little way into the target—and removed all the paint. Haven't the miracles gone far enough now? Not to suit Cooper; for the purpose of this whole scheme is to show off his prodigy, Deerslayer Hawkeye—Long-Rifle—Leather-Stocking—Pathfinder—Bumppo before the ladies.

"Be all ready to clench it, boys!" cried out Pathfinder, stepping into his friend's tracks the instant they were vacant. 'Never mind a new nail; I can see that, though the paint is gone, and what I can see I can hit at a hundred yards, though it were only a mosquito's eye. Be ready to clench!'

"The rifle cracked, the bullet sped its way, and the head of the nail was buried in the wood, covered by the piece of flattened lead."

There, you see, is a man who could hunt flies with a rifle, and command a ducal salary in a Wild West show to-day if we had him back with us.

The recorded feat is certainly surprising just as it stands; but it is not surprising enough for Cooper. Cooper adds a touch. He has made Pathfinder do this miracle with another man's rifle; and not only that, but Pathfinder did not have even the advantage of loading it himself. He had everything against him, and yet he made that impossible shot; and not only made it, but did it with absolute confidence, saying, "Be ready to clench." Now a person like that would have undertaken that same feat with a brickbat, and with Cooper to help he would have achieved it, too.

Pathfinder showed off handsomely that day before the ladies. His very first feat was a thing which no Wild West show can touch. He was standing with the group of marksmen, observing—a hundred yards from the target, mind; one Jasper raised his rifle and drove the centre of the bull's-eye. Then the Quartermaster fired. The target exhibited no result this time. There was a laugh. "It's a dead miss," said Major Lundie. Pathfinder waited an impressive moment or two; then said, in that calm, indifferent, know-it-all way of his, "No, Major, he has covered Jasper's bullet, as will be seen if any one will take the trouble to examine the target."

Wasn't it remarkable! How could he see that little pellet fly through the air and enter that distant bullet-hole? Yet that is what he did; for nothing is impossible to a Cooper person. Did any of those people have any deep-

seated doubts about this thing? No; for that would imply sanity, and these were all Cooper people.

"The respect for Pathfinder's skill and for his 'quickness and accuracy of sight'" (the italics [''] are mine) "was so profound and general, that the instant he made this declaration the spectators began to distrust their own opinions, and a dozen rushed to the target in order to ascertain the fact. There, sure enough, it was found that the Quartermaster's bullet had gone through the hole made by Jasper's, and that, too, so accurately as to require a minute examination to be certain of the circumstance, which, however, was soon clearly established by discovering one bullet over the other in the stump against which the target was placed."

They made a "minute" examination; but never mind, how could they know that there were two bullets in that hole without digging the latest one out? for neither probe nor eyesight could prove the presence of any more than one bullet. Did they dig? No; as we shall see. It is the Pathfinder's turn now; he steps out before the ladies, takes aim, and fires.

But, alas! here is a disappointment; an incredible, an unimaginable disappointment—for the target's aspect is unchanged; there is nothing there but that same old bullet-hole!

"'If one dared to hint at such a thing,' cried Major Duncan, 'I should say that the Pathfinder has also missed the target!'"

As nobody had missed it yet, the "also" was not necessary; but never mind about that, for the Pathfinder is going to speak.

"'No, no, Major,' said he, confidently, 'that would be a risky declaration. I didn't load the piece, and can't say what was in it; but if it was lead, you will find the bullet driving down those of the Quartermaster and Jasper, else is not my name Pathfinder.'"

"A shout from the target announced the truth of this assertion."

Is the miracle sufficient as it stands? Not for Cooper. The Pathfinder speaks again, as he "now slowly advances towards the stage occupied by the females":

"'That's not all, boys, that's not all; if you find the target touched at all, I'll own to a miss. The Quartermaster cut the

wood, but you'll find no wood cut by that last messenger."

The miracle is at last complete. He knew—doubtless saw—at the distance of a hundred yards—that his bullet had passed into the hole without fraying the edges. There were now three bullets in that one hole—three bullets embedded processionally in the body of the stump back of the target. Everybody knew this—somehow or other—and yet nobody had dug any of them out to make sure. Cooper is not a close observer, but he is interesting. He is certainly always that, no matter what happens. And he is more interesting when he is not noticing what he is about than when he is. This is a considerable merit.

The conversations in the Cooper books have a curious sound in our modern ears. To believe that such talk really ever came out of people's mouths would be to believe that there was a time when time was of no value to a person who thought he had something to say; when it was the custom to spread a two-minute remark out to ten; when a man's mouth was a rolling-mill, and busied itself all day long in turning four-foot pigs of thought into thirty-foot bars of conversational railroad iron by attenuation; when subjects were seldom faithfully stuck to, but the talk wandered all around and arrived nowhere; when conversations consisted mainly of irrelevancies, with here and there a relevancy, a relevancy with an embarrassed look, as not being able to explain how it got there.

Cooper was certainly not a master in the construction of dialogue. Inaccurate observation defeated him here as it defeated him in so many other enterprises of his. He even failed to notice that the man who talks corrupt English six days in the week must and will talk it on the seventh, and can't help himself. In the Deerslayer story he lets Deerslayer talk the showiest kind of book-talk sometimes, and at other times the basest of base dialects. For instance, when some one asks him if he has a sweetheart, and if so, where she abides, this is his majestic answer:

"'She's in the forest-hanging from the boughs of the trees, in a soft rain—in the dew on the open grass—the clouds that float about in the blue heavens—the birds that sing in the woods—the sweet springs where I slake my thirst—and in all the other glorious gifts that come from God's Providence!'"

And he preceded that, a little before, with this:

"'It consarns me as all things that touches a fri'nd consarns a fri'nd.'"

And this is another of his remarks:

"'If I was Injin born, now, I might tell of this, or carry in the scalp and boast of the expl'ite afore the whole tribe; or if my inimy had only been a bear'"—and so on.

We cannot imagine such a thing as a veteran Scotch Commander-in-Chief comporting himself in the field like a windy melodramatic actor, but Cooper could. On one occasion Alice and Cora were being chased by the French through a fog in the neighborhood of their father's fort:

"'Point de quartier aux coquins!' cried an eager pursuer, who seemed to direct the operations of the enemy.

"'Stand firm and be ready, my gallant 60ths!' suddenly exclaimed a voice above them; wait to see the enemy; fire low, and sweep the glacis.'

"'Father? father!' exclaimed a piercing cry from out the mist; 'it is I! Alice! thy own Elsie! spare, O! save your daughters!'

"'Hold!' shouted the former speaker, in the awful tones of parental agony, the sound reaching even to the woods, and rolling back in solemn echo. 'Tis she! God has restored me my children! Throw open the sally-port; to the field, 60ths, to the field! pull not a trigger, lest ye kill my lambs! Drive off these dogs of France with your steel!'"

Cooper's word-sense was singularly dull. When a person has a poor ear for music he will flat and sharp right along without knowing it. He keeps near the tune, but it is not the tune. When a person has a poor ear for words, the result is a literary flatting and sharpening; you perceive what he is intending to say, but you also perceive that he doesn't say it. This is Cooper. He was not a word-musician. His ear was satisfied with the approximate word. I will furnish some circumstantial evidence in support of this charge. My instances are gathered from half a dozen pages of the tale called *Deerslayer*. He uses "verbal," for "oral"; "precision," for "facility"; "phenomena," for "marvels"; "necessary," for "predetermined"; "unsophisticated," for "primitive"; "preparation," for "expectancy"; "rebuked," for "subdued"; "dependent on," for "resulting from"; "fact," for "condition"; "fact," for "conjecture"; "precaution," for "caution"; "explain," for "determine"; "mortified," for "disappointed"; "meretricious,"

for “factitious”; “materially,” for “considerably”; “decreasing,” for “deepening”; “increasing,” for “disappearing”; “embedded,” for “enclosed”; “treacherous,” for “hostile”; “stood,” for “stooped”; “softened,” for “replaced”; “rejoined,” for “remarked”; “situation,” for “condition”; “different,” for “differing”; “insensible,” for “unsentient”; “brevity,” for “celerity”; “distrusted,” for “suspicious”; “mental imbecility,” for “imbecility”; “eyes,” for “sight”; “counteracting,” for “opposing”; “funeral obsequies,” for “obsequies.”

There have been daring people in the world who claimed that Cooper could write English, but they are all dead now—all dead but Lounsbury. I don't remember that Lounsbury makes the claim in so many words, still he makes it, for he says that *Deerslayer* is a “pure work of art.” Pure, in that connection, means faultless—faultless in all details—and language is a detail. If Mr. Lounsbury had only compared Cooper's English with the English which he writes himself—but it is plain that he didn't; and so it is likely that he imagines until this day that Cooper's is as clean and compact as his own. Now I feel sure, deep down in my heart, that Cooper wrote about the poorest English that exists in our language, and that the English of *Deerslayer* is the very worst that even Cooper ever wrote.

I may be mistaken, but it does seem to me that *Deerslayer* is not a work of art in any sense; it does seem to me that it is destitute of every detail that goes to the making of a work of art; in truth, it seems to me that *Deerslayer* is just simply a literary delirium tremens.

A work of art? It has no invention; it has no order, system, sequence, or result; it has no lifelikeness, no thrill, no stir, no seeming of reality; its characters are confusedly drawn, and by their acts and words they prove that they are not the sort of people the author claims that they are; its humor is pathetic; its pathos is funny; its conversations are—oh! indescribable; its love-scenes odious; its English a crime against the language.

Counting these out, what is left is Art. I think we must all admit that.

*** END OF THE PROJECT GUTENBERG EBOOK FENIMORE
COOPER'S LITERARY OFFENCES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.